

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7M924R0001

☒ **ORIGINAL**
☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis.
3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
Base, Distribution Box	6110-01-610-0897	2,198 Each		B

Identify end item, weapon system, or class of item: Subject NSN 6110-01-610-0897 is described, as a Base, Distribution Box is part of weapon system (36A), M-1 Abrahams Tank. The primary customer of the Consolidated Ground Support Equipment is the US Army. A Firm Fixed Price Contract is anticipated.

ESTIMATED BASE VALUE:

ESTIMATED TOTAL VALUE (BASE + OPTIONS) N/A

MAXIMUM CONTRACT VALUE: (BASE+ Max Qty break up to 2,499 each):

FOR ADD-ONS, PROVIDE VALUE OF OPTION YRS REMAINING: N/A

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.

Brief narrative supporting the situation and weapon system:

DRS Network & Imaging Systems (32865) is the only source specified on the source control or selected item drawing.

5. If restricted to the only source(s) of supply, include source(s) and CAGE code:

Controlled by: DLA Land and Maritime
Controlled by: [FMVF]
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC: [ken.pliska@dla.mil]

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DRS Network & Imaging (32865) PN 12534948

The use of the authority cited below:

☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

☒ *AMSC B*. This part must be acquired from a manufacturing source(s) specified on a source control or selected item drawing as defined by the current version of DoD-STD-100. Suitable technical data, Government data rights, or manufacturing knowledge are not available to permit acquisition from other sources, nor qualification testing of another part, nor use of a second source part in the intended application. Although, by DoD-STD-100 definition, altered and selected items shall have an adequate technical data package, data review discloses that required data or data rights are not in Government possession and cannot be economically obtained. If one source is available, AMCs 3, 4, or 5 are valid. If at least two sources exist, AMCs 1 or 2 are valid.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

☒ The acquisition will be synopsized on or about 1/30/2024

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

The buyer will utilize price analysis techniques such as comparison to past purchases of same item to determine price reasonableness. The value of this procurement is estimated over than the Certified Cost and Pricing Data threshold of \$2,000,000; therefore, certified cost and pricing data will be required from the contractor.

8. Market Research/Efforts to Obtain Competition:

Describe the market research conducted and the results.

Market research consisted of a review of the NSN's past purchase information where available. Sources sought with an attached market survey was posted to Sam.gov on 12/06/2023 for 7 days. No responses were received from the posting. A Market Survey was sent to the approved source, DRS Network & Imaging Systems (32865)

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

☒ A market survey was conducted on/during 12/12/2023

Total number of vendors contacted: 1

Names of vendors contacted and responding: DRS Network & Imaging

Techniques used to conduct survey: Email

Types of information requested: Price, Qty Breaks, Commerciality, Business Size, Terms, etc...

Summary of information received:

DRS responded to the Governments Maret Survey request on 12/12/2023 [REDACTED], Contracts Administrator. They stated that they are interested [REDACTED] DRS is a large business with 6,007 employees and their parent company Leonardo SPA has 50,410 employees. They

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stated that the approved PN, 12534948, is not commercial,

Most recent awardee, (9H953) Southeastern Equipment was not sent a market survey because they provided a small quantity of surplus material on the most recent order in October 2023.

Prior J&A from contract SPE7M218C0046 is attached for review (See Attachment 1).

Information received regarding the commerciality of the item(s):

Based on past history review and Internet research that did not reveal any commercial sales history, catalogs/brochures, or established price list, blank SAP COTS field status, and in accordance with FAR 2.101 this item is considered to be non-commercial.

9. Additional facts supporting other than full and open competition are:

☒ Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

☒ Other: On 25 January 2024, the Product Specialist verified the AMC/AMSC coding of 3/B and confirmed that DRS Network & Imaging (32865) is the only approved source for this item. (See Attachment 2)

10. A listing of sources, if any, indicating an interest in the acquisition is: (If none, so state)
DRS Network & Imaging Systems (32865)

11. The following actions are being taken to identify additional sources:

☒ Other Any new vendor who decides to pursue source approval will be directed to the Competition Advocate's Source Approval Program. The Competition Management Office (CMO) would encourage interested parties to submit Source Approval Request (SAR) for this item if it should later be determined that future buys of subject NSN are in the best interest of the Government. The solicitation contains the procurement note L22 Restriction of Alternate Offers for Source Controlled Items

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

POE.HERMAN.LEE.JR.1214625691

Digitally signed by
POE.HERMAN.LEE.JR.1214625691
Date: 2024.02.06 08:26:29 -05'00'

Contracting Officer

Date

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APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.1
251897324

Digitally signed by
WIEBUSCH.JAMIE.1251897324
Date: 2024.02.06 11:18:16 -05'00'

02/06/2024

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

- | | |
|--|----------------------|
| ☐ Up to \$750,000 | Contracting Officer |
| ☒ Over \$750,000 to \$15,000,000 | Competition Advocate |

Attachment(s):

1. Prior J&A
2. Technical Certification